



File No.: EXP202312390

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on July 21, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) claims before this Agency the right to Erasure, which they believe has not been addressed by SANTANDER CONSUMER FINANCE, S.A. (hereinafter, the respondent).

The complainant states that the respondent has included their personal data in common credit information systems (SIC) without duly informing them of the inclusion, thus preventing them from exercising their rights before the SIC.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on October 21, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent the opportunity to be heard, so that within ten working days they could present any arguments they deemed appropriate.

The respondent states, in summary, that the complainant did not address them to exercise their rights but did so before the credit information systems. They assert that they became aware of the complainant's request through the transfer made by this Agency. They also state that the complainant has outstanding payment obligations that would prevent the erasure of the data.

"...The Complainant had exercised their right to erasure exclusively before the Credit Information Systems, having not exercised this right, in any case, before Santander Consumer, which is why my client had not been aware of this aspect until receiving the information request from this Agency (...) communication has been sent to the Complainant (attached to this document as Document 1), informing them about the processing of their data by Santander Consumer, resulting from the non-fulfillment of payment obligations as a Client and their communication to the Asset Solvency Systems, in accordance with the provisions of Article 20 of the LOPDGDD..."

CUA

RTO: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any arguments they consider appropriate. The complainant has not submitted any arguments.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is

competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns them the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

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The result of this transfer did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on October 21, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission for processing was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

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Right to Rectification

In accordance with Article 16 of the GDPR, "The data subject shall have the right to obtain from the controller without undue delay the rectification of inaccurate personal data concerning them. Taking into account the purposes of the processing, the data subject shall have the right to have incomplete personal data completed, including by means of a supplementary statement."

Joint Responsibility

Article 26 of the GDPR establishes the following:

"1. Where two or more controllers jointly determine the purposes and means of processing, they shall

be considered joint controllers. The joint controllers shall determine their respective responsibilities in a transparent manner and by mutual agreement in compliance with the obligations imposed by this Regulation, in particular regarding the exercise of the rights of the data subject and their respective obligations to provide information referred to in Articles 13 and 14, unless, and to the extent that, their respective responsibilities are governed by Union or Member State law applicable to them. Such an arrangement may designate a contact point for data subjects.

2. The arrangement referred to in paragraph 1 shall duly reflect the functions and relationships of the joint controllers in relation to the data subjects. The essential aspects of the arrangement shall be made available to the data subject.

3. Regardless of the terms of the arrangement referred to in paragraph 1, data subjects may exercise the rights conferred on them by this Regulation in relation to, and against, each of the controllers." (the underlining is ours)

And the Guidelines 07/2020 on the concepts of "controller" and "processor" in the GDPR Version 2.0 Adopted on July 7, 2021

177. As a complement to what has been explained in point 2.1 above of these guidelines, it is important that joint controllers clarify their respective roles in the arrangement, "in particular" regarding the exercise of the rights of the data subject and their respective obligations to provide information referred to in Articles 13 and 14. Article 26 of the GDPR emphasizes the importance of these specific obligations. Therefore, joint controllers must organize and agree on who and how will provide the information and who and how will respond to data subject requests. As explained further, regardless of the terms of the arrangement regarding this specific point, the

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Interested parties may contact any of the joint controllers of the processing to exercise their rights, as provided in Article 26, paragraph 3.

178. The manner in which these obligations are reflected in the agreement must "properly," that is, accurately, reflect the reality of the joint processing to which they refer. For example, if only one of the joint controllers communicates with the interested parties regarding the joint processing, that controller may be in a better position to inform the interested parties and possibly respond to their requests. (the underlining is ours)

VII

Conclusion

During the processing of this procedure, the entity being complained against has responded to this Agency, sending a copy of the document it claims to have sent to the complainant regarding the exercise of the right to erasure.

However, since it is the complaining party that manages the entries and exits of the complainant's data in the ASNEF file and given that in this case there has been no response to the rectification request, it is considered that it should also have addressed the request made by the complaining party regarding the inaccuracy of the debts that led to their inclusion in the debtor files, sending the required response to their request.

On one hand, the entity being complained against must know that the aforementioned rules do not allow the request to be disregarded as if it had not been made, leaving it without the response that the responsible parties must issue, even in the event that there are no data in the files or even in those cases where the request does not meet the stipulated requirements, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

On the other hand, the request made obliges the responsible party to provide an express response in any case, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the complaining party informing

them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the complaint filed by A.A.A. regarding the provisions of Article 17 of the GDPR.

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SECOND: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 16 of the GDPR have been infringed and to urge SANTANDER CONSUMER FINANCE, S.A. with NIF A28122570, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

THIRD: TO NOTIFY this resolution to A.A.A. and to SANTANDER CONSUMER FINANCE, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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